

		#87.) Counsel did not, however, file any brief or declaration explaining how each of the Court’s previous concerns has been addressed or providing any precise citations to any revisions. Nor did counsel provide the Court with any redlines showing the edits made to the proposed class notice or to the proposed order. Nor did counsel provide the Court with the missing valuation analysis. The Court cannot rule on the motion without the necessary supplemental papers to support the motion. Class Counsel must file full supplemental papers addressing all of the Court’s concerns identified in the Court’s 6/11/2026 order—including full of how the pending issues were resolved with precise citation to any revisions, as well as redlines of the class notice and the proposed order—at least 16 court days before the further continued hearing. The Court also issues an Order to Show Cause why the Court should not impose monetary sanctions against Class Counsel for failing to comply with the Court’s 6/11/2026 order as explained above. The hearing is set for November 5, 2026, at 2:00 p.m. in Department CX102. Any response to the OSC must be filed at least 5 court days before the hearing.
113	Smith vs. North American Video Corporation 2022-01277227	Motion for Preliminary Approval of Class/PAGA Settlement Plaintiffs Brendan Smith and Insiyah Haamid’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to November 19, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/24/2022, Plaintiff Brendan Smith, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant North American Video Corporation (“NAVCO”). (ROA #2.) On 10/11/2022, Defendant answered the class action complaint. (ROA #15.) Also on 8/24/2022, Plaintiff Smith filed a separate PAGA complaint against Defendant in OCSC Case No. 2022-01277262. That complaint was also filed in the ROA of this case. (ROA #37.) On 10/13/2026, Defendant answered the PAGA complaint. (ROA #46.) On 12/19/2022, the Court entered a stipulated order consolidating the two actions. (ROA #63.) A first amended class action complaint was filed on 11/24/2025 (ROA #218) pursuant to the Court’s order granting Plaintiff Smith’s motion for leave (see ROA #214). The first amended class action complaint adds a new named Plaintiff, Insiyah Haamid, as a class representative and alleging various Labor Code wage-and-hour violations and unfair business practices. (ROA #218.) On 12/29/2025, Defendant answered. (ROA #236.) The parties appear to have engaged in extensive discovery, including depositions of both named Plaintiffs, and also sent out a <i>Belaire-West</i> notice to putative class members on 7/8/2024. (ROA #266 [Counsel Decl.], ¶¶ 18-26.)

On 6/24/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Joint Stipulation and Settlement Agreement (“Settlement Agreement”) and proposed Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$790,000. The GSA includes \$50,000 allocated for PAGA penalties.

The Court has identified a few issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

1. The motion’s memorandum of points and authorities only briefly addresses the class certification prerequisites (i.e., ascertainability, numerosity, commonality, typicality, adequacy, and superiority) by stating: “Plaintiff contends, and Defendant does not dispute for settlement purposes only, each of these elements must be present.” (ROA #264, pp. 23.) There is no detailed analysis applying the relevant law to facts to support Plaintiff’s general contention that class certification prerequisites have been met even for settlement purposes. Per this department’s Guidelines for Approval of Class Action Settlements & PAGA Settlements at ¶ 10, the motion “must . . . provide sufficient information and argument for the court to conclude that the class certification prerequisites have been met. See Cal. R. Ct. 3.769; *Amchem Products, Inc. v. Windsor* (1997) 521 U.S. 591, 625-27; *Carter v. City of Los Angeles* (2014) 224 Cal.App.4th 808, 826.”
2. In ¶ 78.15.2, the Settlement Agreement provides that “[a]ll funds associated with the Uncashed Checks shall be tendered to the State of California’s Unpaid Wage Fund, in the name of the Class Member.” However, the Unpaid Wage Fund no longer accepts uncashed checks as a result of private settlement. The provision must be amended to state that such funds will be paid to the State Controller’s Office Unclaimed Property Fund in the names of the applicable payees.
3. Plaintiffs have failed to submit for the Court’s review a [Proposed] Order Granting Preliminary Approval along with the moving papers.

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The notice should be revised so as to be consistent with the resolution of the issues identified above.
2. On p. 1, the chart of “Your Legal Rights and Options” should include an option for Work Order disputes.
3. Additionally, the chart on p. 1 should include page references to where in the notice more information can be found about each option.
4. Throughout the notice, the placeholder text for response deadlines states only “60 DAYS AFTER MAILING.” This does not account for any extension that may be required for remailed notices per ¶ 78.3.6 of the Settlement Agreement.
5. The notice should state that any Class Member who does not request exclusion may, if the Member so desires, enter an appearance through counsel. (Cal. Rules of Court [CRC], rule 3.766(d)(5).)

		The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court’s concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs are ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Mical vs. Prime Healthcare La Palma, LLC 2022-01292457	Case Management Conference The Court would like to hear from the parties regarding the effect of the Barnuevo settlement on this case.
115	Barnuevo vs. Prime Healthcare La Palma, LLC 2021-01223132	Motion to Approve a PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiffs’ Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson’s Motion for Approval of PAGA Settlement is GRANTED. This is a Labor Code violation case, including a PAGA claim. On 9/24/2021, Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson filed a complaint for Labor Code violations against Defendant Prime Healthcare La Palma LLC. (ROA #2.) On 11/30/2021, Plaintiffs filed a first amended complaint, which included adding a PAGA cause of action. (ROA #9.) The operative complaint is the second amended complaint (SAC), filed on 1/14/2026. (ROA #135.) In the meantime, on 5/2/2022, the parties stipulated to arbitrate Plaintiffs’ claims and to stay this action, “including the PAGA action,” until this matter is